

4	Ghadiri v. Adam 2025-01481407 Leave to Amend DENIED.	Plaintiff, Adam Ghadiri's Motion for Leave to Amend is DENIED. Defendant's requests for judicial notice are granted as records of this Court. (Evid. Code, § 452(d).) Defendant's counsel is reminded Code Civ. Proc., § 1010.6(c)(1) [requires express consent for electronic service of unrepresented parties]. The Court has already determined the causes of action are beyond the statute of limitations. Plaintiff's proposed amendment contains the same fatal defect within the original complaint. Exhibit B to the proposed amendment is an email from June 5, 2021 acknowledging that Plaintiff was aware of the alleged facts giving rise to the fraud claim. Thus, the delayed discovery rule could only delay accrual of the statute of limitations until June 5, 2021. Plaintiff's 3rd and 4th causes of action for violation of Civil Code § 1102 and 2079 are similarly barred by the statute of limitations. Therefore, Plaintiff is denied leave to amend. Plaintiff shall give notice.
5	Hull v. Knickerbocker Prop. Inc., XL 2025-01493736 Strike Portions of First Amended Complaint	The motion of Defendants Sentinel Real Estate Corporation and Knickerbocker Properties, Inc. XL to strike portions of the first amended complaint of Plaintiffs Michael Hull and Paige Meskimen is GRANTED with 30 days' leave to amend. If plaintiffs choose to amend, they should specify the causes of action for which punitive damages are sought as well as the specific conduct supporting that request. According to <i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210, subdivision (a) of Civil Code section 3294, authorizes an award of punitive damages in noncontract actions where it is proven by clear and convincing evidence that the defendant has been guilty of oppression or malice. Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Ibid. As amended in 1987, malice based upon a conscious disregard of the plaintiff's rights requires proof that the defendant's conduct is "despicable" and "willful." <i>Lackner v. North</i>, supra, 135 Cal.App.4th at p. 1211. The 1987 amendment also increased the burden of proof so that malice or oppression must be established by clear and convincing evidence. Ibid. Plaintiffs have not clearly identified the conduct that purportedly justifies an award of punitive damages. Nor have they identified the cause or causes of action for which such

		damages are sought. Not all causes of action in the FAC can support a claim for punitive damages. Defendants shall give notice.
6	Huynh v. Williams 2024-01436961 Pro Hac Vice Admission	The application of Texas attorney Minh-Tam (Tammy) Tran to appear pro hac vice as counsel for Defendant Gerard Richard Williams III in this matter complies with all applicable requirements and is hereby GRANTED pursuant to California Rules of Court, Rule 9.40. Moving party shall give notice.
7	Leventhal v. Home Depot, USA, Inc. 2025-01474333 Motion for Preference Denied	The Motion of Plaintiffs Dorothy and Robert Leventhal for an order establishing their entitlement to a preferential trial date that is within 120 days of hearing is DENIED. Subdivision (a) of Code Civ. Proc. § provides: (a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. Despite the submission of exhibits and the declaration of their attorney, Plaintiffs have not shown that their health is in such condition that advancing the trial is necessary to prevent prejudice to them in the litigation. Plaintiff shall give notice.
8	Loeffler v. Assoc. Lien Service, Inc. 2016-00873201 Motion to Compel Further Response to set of Post-Judgment RFP	The motion filed by Judgment creditor Trabuco Highlands Comm. Assoc. to compel further response to set of post-judgment requests for production and sanctions is DENIED. The meet and confer declaration submitted by judgment creditor with the motion does not meet the requirements set forth in section Code Civ. Proc § 2016.040(a). Counsel for Judgment creditor, Amy Hammond declares that she sent two meet and confer letters to counsel for judgment debtor on December 22, 2025 and January 8, 2026. She never declares that she made any attempts to meet and confer with judgment debtor's counsel by person, telephone, or videoconference. Nor does she declare that she made any attempts to meet and confer with counsel for judgment debtor after judgment debtor served the supplemental response on January 13, 2026.